

Tentative Rulings for August 19, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	MOTION TO QUASH MOTION TO QUASH DEPOSITION NOTICES AND FOR PROTECTIVE ORDER

Tentative Ruling: Granted.

Personal appearance subpoena served July 15, 2026 on Chris Christensen is quashed by order of the court.

Moving parties to provide notice pursuant to CCP § 1019.5.

This is a validation action under CCP §§ 860 *et seq.* On December 30, 2024, Plaintiff Desert Healthcare District (the “District”) filed a Complaint, seeking to validate a Lease Purchase Agreement (“LPA”) it entered into with Plaintiff-Intervenor Desert Regional Medical Center, Inc. (the “Medical Center”). On February 27, 2025, Defendant Eisenhower Medical Center (“EMC”) filed its Answer contesting validation. Shortly thereafter, the Medical Center intervened as a plaintiff in support of validation.

On March 26, 2026, the Court denied the District’s motion for summary judgment. At this stage, there are only two issues for the Court to resolve at the September 4, 2026 trial. The first is whether the LPA is subject to validation. The second is whether the District’s decision to enter into the LPA is supported by substantial evidence.

This Court has issued several discovery rulings that set the scope of the instant motions. On March 10, 2026, the Court denied EMC’s motions to compel document production, emphasizing that validation proceedings are “usually limited to the administrative record, what was available to the public agency when the decision was made.” (Garlick Decl. ¶ 1, Ex. 1.) On April 14 and 15, 2026, the Court ruled that “discovery is not precluded in validation cases” and that relevant evidence would be anything that could support a finding that the action taken was invalid or unlawful, but limited further interrogatory discovery to the scope and application of the LPA’s noncomplete. (*Id.* at ¶¶ 2–3, Exs. 2–3.)

On July 17, 2026, the Court denied EMC’s motion for reconsideration of the March 10 order, confirming that its April rulings were “entirely consistent” with its March 10 order and reflected the same narrow view of relevance. (*Id.* at ¶ 8, Ex. 8.)

Pursuant to the April orders, the District and the Medical Center served amended interrogatory responses on May 15, 2026. (*Id.* at ¶ 4, Ex. 4.) Chris Christensen, the District’s former Chief Executive Officer (“CEO”), verified the District’s interrogatory responses. (*Id.*) Michael Ditoro, the Medical Center’s CEO, verified the Medical Center’s interrogatory responses. (Jayadevan Decl. ¶ 2.) Andrea Hayles, the District’s Special Assistant to the CEO and Board Relations

Officer, certified the amended Administrative Record. (*Id.*) EMC then served a series of deposition notices.

On June 1, 2026, EMC served notices for the depositions of the Persons Most Qualified (“PMQ”) of both the District and the Medical Center, directed to three topics. (Garlick Decl. ¶ 5.) Topic 1 concerned the amended interrogatory responses and the factual bases underlying those responses. Topic 2 concerned the contents and preparation of the proffered Administrative Record. Topic 3 concerned any witnesses the District and the Medical Center intend to call at trial. (Jayadevan Decl. ¶ 4, Ex. A.) EMC later served a deposition notice on Ditoro dated July 8, 2026 (Garlick Decl. ¶ 6), a personal appearance subpoena on Christensen served July 15, 2026, for a July 29, 2026, deposition (Garlick Decl. ¶ 7), and a deposition notice on Hayles dated July 20, 2026 (Garlick Decl. ¶ 9).

On July 24, 2026, the District and the Medical Center (collectively, “Movants”) filed the instant motion to quash. (Jayadevan Decl. ¶ 3.)

On July 31, 2026, following full briefing and oral argument, the Court ruled on the earlier motion for protective order concerning the PMQ depositions. As to Topic 1, the Court held that the issue of potential antitrust concerns is discoverable, and that Topic 1 is open to further discovery to inquire into the basis for the amended response and how antitrust issues were addressed and how it was determined that such concerns were outweighed by the benefits to the relevant market. (Jayadevan Decl. ¶ 4, Ex. A.) As to Topic 2, the Court held that “As Plaintiffs assert that this validation action hinges on the administrative record, its contents and preparation are a proper basis for further discovery in this action.” (*Id.*) As to Topic 3, the Court granted the motion and stated that witness lists would be exchanged per the Court’s schedule. (*Id.*) That same day, EMC served an Amended Deposition Subpoena for Personal Appearance on Christensen that removed any reference to a request for production of documents and sought only deposition testimony. (*Id.* at ¶ 5, Ex. B.)

In light of the July 31 ruling, Movants have agreed to withdraw the portion of the Motion that relates to the PMQ notices. EMC has evaluated and agrees to withdraw its request for the deposition of Michael Ditoro. EMC has also agreed that if the District designates Ms. Hayles as its PMQ on Topic 2, then EMC is willing to withdraw the deposition notice issued to her in her personal capacity and depose her instead in her designated PMQ capacity only. The District has confirmed it will offer Hayles as its PMQ. The only remaining dispute before the Court is EMC’s personal appearance subpoena to Christensen.

Movants move to quash EMC’s deposition notices to Ditoro, Hayles, and Movants’ PMQs, along with its subpoena to Christensen, arguing that validation actions are usually limited to the administrative record and that the discovery sought is irrelevant, cumulative, and outside the scope this Court has already permitted. They further contend that the Christensen subpoena impermissibly targets a former District employee without justification, that the privileges belonging to the District cannot be protected by a nonparty former employee, and that the notices and subpoena are overbroad and unduly burdensome.

In opposition, EMC argues that the Court has already rejected Movants’ contention that California law categorically bars discovery in validation proceedings and has held that discovery is permitted. EMC narrows the dispute by withdrawing the Ditoro notice and agreeing to depose Hayles only in her PMQ capacity if the District designates her on topic 2. As to Christensen, EMC contends that Movants themselves selected him to verify the District’s court-ordered amended interrogatory responses, that he has since raised concerns about whether the Board took unethical or illegal actions not to the benefit of the entire District, matters bearing on invalidity, and that any privilege concerns can be addressed by objection during the deposition.

In reply, Movants narrow the motion to the Christensen subpoena alone, withdrawing the PMQ objections in light of the Court's July 31 ruling and confirming that the District will offer Hayles as its PMQ. They argue that nothing EMC could ask Christensen would not be better answered by a corporate designee, that the July 31 order did not authorize any other depositions, let alone of a former District employee, and that EMC has failed to identify specific, unique, nonprivileged testimony from him that is relevant to the narrow discovery permitted here and unobtainable from the District, the administrative record, the court-ordered augmented record, or the PMQ process. Movants add that Christensen's post-termination grievances concern internal politics between him and Board President Kimberly Barraza rather than the Agreement, and that as a nonparty former employee he cannot protect the District's privileges, making the subpoena cumulative and improper.

Motion to Quash

A party or deponent may move to quash a deposition subpoena or move for a protective order under CCP §§ 1987.1, 2025.410, and 2025.420(a). A deposition notice must comply with Article 2 of the Civil Discovery Act (CCP § 2025.210 *et seq.*), and a party served with a noncompliant notice may move to quash the deposition notice and stay the deposition. (CCP § 2025.410.) On such a motion, the court may make any order to protect a party or deponent, including an order that the deposition not be taken at all, that certain matters not be inquired into, that the scope of the examination be limited, or that designated writings or tangible things not be produced. (CCP §§ 2025.420(b)(1), (9)–(11).)

Any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action, if the matter is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (CCP § 2017.010.) The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (CCP § 2025.420(b).)

When moving for a protective order, the burden is on the moving party to establish good cause for the relief requested. (CCP § 2025.420(b).) The court must, however, restrict the frequency or extent of a discovery method if it determines that the discovery sought is unreasonably cumulative or duplicative, is obtainable from some other source that is more convenient, less burdensome, or less expensive, or is unduly burdensome or expensive taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation. (CCP § 2019.030(a).)

The scope of discovery available from nonparties is more limited. "As between parties to litigation and nonparties, the burden of discovery should be placed on the latter only if the former do not possess the material sought to be discovered." (*Calcor Space Facility, Inc. v. Sup. Ct.* (1997) 53 Cal.App.4th 216, 225.) The subpoenaing party bears the burden of providing evidence, not mere generalities, demonstrating a reasonable relationship between the materials or testimony sought and the issues involved in the case. (*Id.* at 224.) Because promiscuous discovery imposes great burdens on nonparties, trial courts must carefully weigh the cost, time, expense, and disruption of the discovery against its probative value, and should structure discovery in a manner that is least burdensome to a nonparty. (*Id.* at 223–25.)

This Court has previously recognized that a validation action is “usually . . . limited to the administrative record; what was available to the public agency when the decision was made.” (Garlick Decl. ¶ 1, Ex. 1 at 8:9–12.) The Court has further held that a “Court’s evaluation in validation actions is typically limited to what evidence was before the agency, i.e., the documents contained in the administrative record.” (*Id.* at ¶ 8, Ex. 8.) On August 3, 2026, the Court reiterated that “[a]s to Eisenhower’s request for the court to supplement or augment the record with extra-record evidence to provide background information or establish that District did not fulfill its duties in making the decision to enter the agreement or assist the court in understanding the agency’s decision, the court does not need ‘background information’ or other evidence to ‘understand the agency’s decision’, such should be limited to the administrative record (once complete and certified). Only evidence that would go to the lawfulness of the decision is admissible.” (See Minute Order, Aug. 3, 2026.)

The narrow issue before the Court is whether EMC has shown good cause to depose former District CEO Chris Christensen individually, in light of the PMQ discovery already authorized by the Court’s July 31, 2026, order on Topics 1 and 2, the Administrative Record and amended Administrative Record, and the narrow scope of discovery permitted in this validation action.

The scope of discovery available from nonparties is more limited than that available from parties. “As between parties to litigation and nonparties, the burden of discovery should be placed on the latter only if the former do not possess the material sought to be discovered.” (*Calcor Space Facility, supra*, 53 Cal.App.4th at 225.) The subpoenaing party bears the burden of coming forward with evidence, not “mere generalities,” to justify the discovery it seeks. (*Id.* at 224.) This burden is heightened in validation proceedings, where discovery “is to be severely limited.” (*Morgan v. Cmty. Redevelopment Agency* (1991) 231 Cal.App.3d 243, 258.)

Christensen is no longer employed by the District. (See Jayadevan Decl. ¶ 2.) As Movants argue, whatever knowledge he has that could conceivably bear on this validation action, he acquired in the course of his employment with the District, a party to this action. (Movants’ Mot. 19:19–21.) That information therefore resides with the District itself, and specifically in the over 7,000-page certified Administrative Record already produced to EMC. (*Id.* at 19:22–23.) A former employee is beyond the District’s control and cannot be prepared by it, and his individual recollection is no substitute for the District’s own records and the certified Administrative Record that define what was before the agency when it acted. (*Id.* at 20:4–6.)

To justify nonparty discovery from Christensen, EMC must therefore identify specific, unique, nonprivileged testimony from him that is relevant to the narrow discovery permitted in this validation action and that cannot be obtained from the District, the Administrative Record, the court-ordered augmented record, or the PMQ process. (*Calcor, supra*, 53 Cal.App.4th at 224–25.) EMC has not done that. The opposition identifies no specific nonprivileged facts Christensen supposedly possesses concerning the narrow issues left for trial.

Under CCP § 2019.030(a), the Court must “restrict the frequency or extent of use of a discovery method” that is “unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive.” (CCP §§ 2019.030(a)(1)–(2).)

On July 31, 2026, this Court denied Movants’ motion for protective order as to Topics 1 and 2 of the PMQ depositions. (Jayadevan Decl. ¶ 4, Ex. A.) As to Topic 1, the Court held that potential antitrust concerns are discoverable and that Topic 1 is “open to further discovery to inquire into the basis for the amended response and how antitrust issues were addressed and how it was determined that such concerns were outweighed by the benefits to the relevant market.” (*Id.*, Ex. A at 4.) As to Topic 2, because Movants contend the action hinges on the Administrative

Record, the Court held that “its contents and preparation are a proper basis for further discovery in this action.” (*Id.*)

Christensen verified the District’s amended interrogatory response. (*Id.* at ¶ 2.) The Court has now authorized PMQ discovery on Topic 1, which encompasses the basis for the amended interrogatory response and how antitrust issues were addressed. (*Id.* at ¶ 4, Ex. A.) Movants will produce a PMQ witness on this topic. (Movants’ Reply 3:6.) Christensen’s verification was executed in his capacity as the District’s representative and was signed on behalf of that party. (CCP § 2030.250(b).) The PMQ procedure allows the District to prepare a witness with all the relevant information within the entity’s possession, confine the testimony to the matters described with reasonable particularity in the notice (CCP § 2025.230), and protect privileged communications and attorney work product (CCP § 2018.030; Evid. Code §§ 953–954). Thus, because the PMQ procedure covers the same subject matter and provides the appropriate procedural safeguards, an individual subpoena to a former employee is, at a minimum, cumulative. (CCP § 2019.030(a).)

As previously stated, the two issues for trial in this validation action are whether the LPA is subject to validation and whether the District’s decision is supported by substantial evidence. (Movants’ Mot. 10:12–15.) Christensen was terminated from his position at the District by a unanimous vote of the Board. (Movants’ Reply 2:4–5.) Movants contend that Christensen has since raised meritless attacks on the District, none of which have any relation to the LPA that is the subject of this validation action. (*Id.* at 2:5–7.) The specific issues Christensen has raised in public statements concern “the internal politics and the challenges that [he] think[s] were essentially between [him] and [District Board] President [Kimberly] Barraza.” (*Id.* at 6:10–11.) Christensen’s complaints appear to be about his performance review process and his working relationship with Barraza. (*Id.*) EMC cites no source and offers no argument suggesting that Christensen has concerns about the legality of the LPA.

EMC’s only proffered basis outside of the interrogatory verification is that Christensen was recently terminated and has “since raised questions about whether the Board of Directors for the District took actions that were unethical or illegal, and raised concerns that the Board of Directors took actions that were not to the benefit of the entire District.” (Def.’s Opp. 10:6–8.) This conclusory assertion does not amount to the particularized showing required for nonparty discovery, especially as to the limited issues remaining for trial. (*See Calcor, supra*, 53 Cal.App.4th at 224.)

The attorney-client privilege belongs to the District, not to Christensen. (Evid. Code §§ 953, 954.) To the extent Christensen participated in confidential communications with the District’s counsel during his employment, the privilege belongs to the District and survives the end of his employment. (Evid. Code § 953 [privilege holder is the client]; *Venture Law Grp. v. Sup. Ct.* (2004) 118 Cal.App.4th 96, 102–03.) Christensen cannot waive the privilege, because waiver can occur only when the holder of the privilege discloses the information, and he is in no position to protect it. (Movants’ Reply 6:21–26; Evid. Code §§ 912(a), 954.) Christensen likewise cannot be expected to protect the District’s work product, deliberative process privilege, or official information privilege during a deposition in which he appears as an individual former employee and not as a prepared District representative. (*See* CCP § 2018.030 [work product]; Evid. Code § 1040 [official information]; *Times Mirror Co. v. Sup. Ct.* (1991) 53 Cal.3d 1325, 1340; *see also Cal. First Amendment Coal. v. Sup. Ct.* (1998) 67 Cal.App.4th 159, 170–73.)

As Movants argue, Christensen is outside the District's control, potentially adverse to the District, and is noticed for examination without any confining subject matter topics. (Movants' Reply 7:1–2.) Movants contend there is no reason to believe Christensen would obey instructions from the District's counsel to refuse to answer a question on the basis of privilege. (*Id.* at 7:2–4.) Protective orders are the appropriate vehicle to define the boundaries of inquiry and limit improper questioning before it occurs. (CCP § 2025.420(b).) EMC's response that privilege concerns can be addressed through timely objections during the deposition does not answer the problem, because the person best positioned to raise those objections is a prepared District designee chosen and instructed by the entity that holds the privilege, not a nonparty former employee. (See CCP § 2025.230; Evid. Code §§ 953, 954.)

In sum, EMC has failed to carry its burden to justify individual, nonparty discovery from Christensen.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501285	WEBB VS DESERT HOT SPRINGS OIL CORPORATION	MOTION TO BE RELIEVED AS COUNSEL AS TO MARGARET WEBB

Tentative Ruling: No tentative ruling. Hearing will be conducted on Wednesday August 19, 2026 8:30 a.m. Department PS2.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501431	GAMALIEL ROJO VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES BY SENET GAMALIEL ROJO

Tentative Ruling: Granted.

Attorney fees in the reduced, but reasonable amount of \$14,165.00 and costs in the amount of \$1,758.15 are payable by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP § 1019.5.

Plaintiff Senet Gamaliel Rojo brings this Song-Beverly action regarding a 2024 GMC Canyon that had engine defects. On 2/27/25, Plaintiff filed his complaint for: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of express warranty; and (5) breach of implied warranty of merchantability. On 2/23/26, Plaintiff filed a notice of settlement.

Plaintiff moves for attorney fees of \$17,398, a .3 multiplier of \$5,219.40, and costs of \$1,758.15. Plaintiff argues that fees and costs are mandatory to the prevailing party. Plaintiff contends counsel's rate are reasonable as shown by other cases. Plaintiff contends that hours billed are reasonable as any entries that are duplicative, redundant or unnecessary have been removed. Plaintiff asserts a multiplier is warranted.

In opposition, Defendant contends that the parties quickly settled at mediation for a case in 5 months. It argues counsel's \$525 rate is excessive. It challenges specific entries as duplicative, unreasonable, and estimated work for the fees. It asserts that the multiplier is not warranted.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Here, the parties apparently settled, Plaintiff is the prevailing party, with the court to decide fees.

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to Plaintiff's counsel's billing records, the lodestar is as follows:

Attorney	Flat Rate	Hourly Rate	Hours	Total
Khoubian	\$3,500.00	\$525	12.8	\$10,220.00
McCabe		\$430	2.1	\$903.00
Paralegal		\$250	25.3	\$6,325.00
TOTAL			40.2	\$17,448.00

The hourly rate for Khoubian, as the principal attorney, is within the range of reasonable rates in Riverside County. However, no information is provided as to attorney McCabe or the paralegal to justify the rates. The court will reduce the rates to \$375 and \$150 respectively.

As for the billing entries, the court reduces the following:

- 2/27/25: The paralegal's 1.3 hours and Khoubian's .7 hours to draft and review the complaint is excessive for a standard lemon law complaint. The court reduces the amount to .5 and .3, respectively.
- 2/27/25: Khoubian's review of conformed copies of the complaint, summons, civil cover sheet and case management notice for .5 is excessive. The Court reduces the amount to .2.
- 4/15/25-4/25/25: The paralegal spent 1.0 hours collectively to email counsel for deposition. This is excessive in light of the minimal depositions that took place. The court reduces the amount to .5.
- 4/25/25: The paralegal spent .5 drafting two emails for mediation. The court reduces this to .3.
- 2/23/26: The paralegal spent .5 to file and serve a notice of settlement. The court reduces this to .2.

Attorney	Flat Rate	Hourly Rate	Hours	Total
Khoubian	\$3,500.00	\$525	12.1	\$9,852.50
McCabe		\$375	2.1	\$787.50
Paralegal		\$150	23.5	\$3,525.00
TOTAL			37.7	\$14,165.00

The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.)

As this is a typical lemon law case, there is no basis for a multiplier.

As for costs, Defendant does not challenge costs.